WORKSHEET 5 OF 5

State Questions Worksheet

Use this in any state. Copy this page. Fill it in for the state where the building sits.

> This worksheet works in any state. Licensing, utility regulation and permitting are state and local law. Florida is this book's worked example, and a few named sources for Texas, Georgia, Virginia, Ohio and Arizona are in the "Other states" boxes in chapters 4, 11 and 12. Everything else you look up yourself, here. These are the questions to ask. They are not answers, and this page is not legal advice. Write down who answered, and when. Rules change.

State: _____ **County or city:** _____ **Started on:** _____

How to find the official source in any state

Use the same four steps for every question on this page.

1. **Start at the government's own website.** The state legislature for statutes. The board or commission for a license. The utility commission for dockets and tariffs. The county or city for zoning and permits.
2. **Use the search the agency itself runs.** For a license it is usually called "license lookup", "verify a license" or "roster". For a tariff it is the utility's "rates and tariffs" page or the commission's docket search.
3. **Copy the words and the citation.** Write the section number, the page title and the date you read it.
4. **Then ask a person.** Take what you read to your broker, the agency's staff or an attorney in that state. What you read is a starting point. It is not a legal conclusion.

Which office to ask

What you need	Kind of office to ask	What to search for on its website
Who must hold a real estate license to earn a fee	State real estate commission or board; your broker	"license law"
Whether a real estate license is active	State real estate commission or board	"license lookup" or "verify a license"
Whether an engineer is licensed	State board of professional engineers	"roster" or "licensee search"

What you need	Kind of office to ask	What to search for on its website
Whether a contractor is licensed	State contractor board; if the state has none for that trade, the local building department	"contractor search"
Large-load or data center tariffs	State public utility or public service commission; the serving utility	"large load", "data center", "tariff book"
Who serves the address	The serving utility's new-service or business desk	"service territory map"
Building code edition	City or county building official	"adopted codes"
Zoning and use	City or county planning office	"zoning map", "use table"
Water permits	State environmental agency or regional water district	"water use permit"
Parcel records	County assessor, appraiser or auditor	"property search"

Part 1. The ten licensing questions (chapter 11)

Take these to your broker, your state's real estate regulator and an attorney.

About brokerage

#	Question	Answer	Date	Who answered (name and role)
1	How does my state define brokerage activity? Does pay have to depend on a closing?			
2	How must my compensation flow? Through my broker only?			
3	May I, or my broker, pay a referral fee to an unlicensed person? To a licensee in another state?			
4	What may an out-of-state licensee do on a property in my state? What may I do on a property in another state?			
5	What does my state require when I advertise a property feature I have not verified?			

#	Question	Answer	Date	Who answered (name and role)
6	What rules apply when I buy or sell for my own account?			
7	May I take a separate consulting fee from a brokerage client? What must I disclose?			

About engineering and contracting

#	Question	Answer	Date	Who answered (name and role)
8	How does my state define the practice of engineering? Does it include consultation, investigation or evaluation?			
9	How does my state define contracting? Does offering or bidding count?			
10	Which board licenses electrical, mechanical and fire protection contractors, and how do I verify a license?			

Where I verify a license in this state

License	Agency	Public search page	Date found
Professional engineer			
General or building contractor			
Electrical contractor			
Mechanical contractor			

License	Agency	Public search page	Date found
Fire protection contractor			
Real estate broker or sales associate			

Part 2. The three utility and permit questions (chapter 3)

Take these to the state utility commission's website, the serving utility and the local permitting offices.

#	Question	Answer	Date	Who answered, or which document
11	Is there a state data center law? At what size does it apply?			
12	Who regulates the serving utility?			
13	Who issues water permits?			

Notes for Part 2

- Question 11: write the size in the law's own words. Is it megawatts of total load at one location, or something else? Is the rule in force, or only proposed? A proposed term is not a rule in force. Look also for a commission rule or a utility tariff for large loads; chapter 4 shows four.
- Question 12: name the utility first, with your source. Then ask whether it is investor-owned, publicly owned or a cooperative, and which body sets its rates and service rules.
- Question 13: the answer may be a state agency, a regional district or a local utility. It can depend on where the parcel is.

For each answer, check

- ☐ I wrote the date.
- ☐ I wrote the name and role of the person, or the title and section of the document.
- ☐ I copied the rule's own words where I could.

- [ ] I did not assume another state's answer applies here.
- [ ] An attorney in this state has seen any answer I plan to rely on.